WLEE MOBILE MONEY

AGENT AGREEMENT

This Agreement is made between Wlee Financial Service Inc, hereinafter referred to as “Wlee”, who primary place of business is the Yes Building on Camp John Road, represented by a duly authorized representative of Wlee,

AND

An independent agent, herein referred to as “The Agent” and represented by:

Full Name _____

Business Location_____

County of Business _____

Mobile Number 1_____

Mobile Number 2_____

ID Card Number _____

ID Card Type

___Driver’s License

___National ID Card

___Voter Registration Card

___Business Registration

Date of Birth_____

Place of Birth_____

Email Address_____

This agreement together with the annexes hereto (together “the Agreement”) contains the complete terms and conditions that apply to an Agent's participation as a Wlee agent and supersedes all other agreements entered into between the Agent and Wlee in relation to the provision of mobile money services.

The Agreement is hereby as follows:

Agreement

1. Definitions
   1.1. The following definitions relate to these Conditions of Use:
   1.2. "Account" means your Wlee Account, being the record maintained by us of the amount of mobile money from time to time held by you and represented by an equivalent amount of cash held on your behalf.
   1.3. "Agent(s)" means an independent agent who, by Liberian government law, can review new subscriber credentials and setup an account as a Level 1, 2, or Level 3 account. Agents also provides mobile money top-up (use cash to add credit to Account) or cashout (convert account credit to cash) and provides regular detailed transaction reports to Wlee. Agents are certified and accredited by Wlee to engage in transactions on behalf of Wlee.
   1.4. "Agreement" means these Conditions of Use together with the Registration Information.
   1.5. "Business Location" or "Outlet" means any shop, unit or other retail premises operated by an Agent.
   1.6. "Fees" means the Tariffs and other charges payable under this Agreement for the Wlee Service.
   1.7. "Conditions of Use" means these terms and conditions as may be varied by us from time to time.
   1.8. "Credit" or "Wlee Credit" means the amount of mobile money balance in United States (US) dollars and Liberian dollar from time to time standing in the credit of your Account.
   1.9. "Credit Transaction means any transaction which results in a Credit of funds to a Wlee Account as verified by Wlee.
   1.10. "Customer" mean an Agent, Merchant, or Subscriber with an active Wlee account.
   1.11. "Customer Support Center" means the Wlee Customer Support Center, contactable by telephone using the numbers provided by Wlee, by email using the email address provide by Wlee, or by visiting a Wlee office location.
   1.12. "Registration Form" means the registration form containing registration details and acceptance of these Conditions of Use by you in the form annexed hereto.
   1.13. Debit" means the movement of funds out of a Wlee Account
   1.14. "Debit Transaction" means any transaction which results in a Debit of funds from a Wlee Account as verified by Wlee.
   1.15. "Designated Payee" means any person (including yourself, another subscriber, an Agent or Wlee merchant) who is designated by you by the App, to be the recipient of Credit from your Account.
   1.16. "Fund" means cash received from a Customer in US dollars or Liberian dollar for the purpose of being credited to a Wlee account.
   1.17. "Goods and Services" means such goods and services as may be purchased from Wlee Retailers using the Wlee platform.
   1.18. "ID Number" means the number associated with the form of identification provided.
   1.19. "Merchant" shall mean and include any outlet/ service provider who have been authorized by Wlee to accept payment for goods or services using an Wlee Account;
   1.20. "Mobile App" means the Wlee mobile application available in the App or Play store that customers can use to register, login, and engage in mobile money transactions.

1.21. “Mobile Equipment” means your Mobile Phone and SIM Card or other equipment which when used together allows access to Wlee and, in each case, is approved for use within Liberia by the relevant authority.
1.22. “Mobile Phone” means your mobile phone handset.
1.23. “Networks” mean the Global System for Mobile telecommunication (“GSM”) systems operated by Network Service Operators and covering those areas within Liberia as stipulated from time to time by them.
1.24. “Network Service Provider” means the provider of mobile phone services.
1.25. “Platform” refers to the Wlee application platform used by subscribers, agents, and merchants to establish accounts and conduct transactions.
1.26. “Payments” means money paid to an Agent, for the purchase of an equivalent amount of mobile money fund credited to your Account, any such monies thereafter being held by Wlee for you as specified herein.
1.27. “PIN Number” means your personal identification number being the secret code you choose to access and operate your Account.
1.28. “Partner Bank” means a banking institution in Liberia where the mobile money trust accounts exists and are managed by the bank and Wlee. As required by Liberian law, a mobile money trust account is a bank account in Liberia where mobile money transaction are debited, credited, and reconciled to. Wlee mobile money transactions are pooled and reconciled using this account based on Liberian laws.
1.29. “Platform” or “Wlee” means a mobile money payment and transfer system specifically targeted at Liberians.
1.30. “Sales Territory” The county district location where the Agent has an Outlet and provides Wlee services.
1.31. “SIM Card” means the subscriber identity module which when used with the appropriate Mobile Equipment enables you to connect to the Network and use Wlee mobile money.
1.32. “SMS” means a short message service consisting of a text message transmitted from one Mobile Phone to another
1.33. “Subscriber” means a person in whose name an Account for the Wlee service is registered.
1.34. “Tariffs” means actual charges for use of the Wlee platform as published in the Wlee website
1.35. “Transactions” means any of the transactions specified in Clause 8.5.
1.36. “Transfer Instructions” means instructions given via the Mobile App or SMS for the transfer of mobile money from one subscriber to another.
1.37. “Wallet” means the electronic money issued by Wlee and representing an entitlement to an equivalent amount of cash monies held by Wlee in respect of the purchase of such electronic value.
1.38. “Wlee Services” or “Services” means the services provided by Wlee for the issue and redemption of mobile money and the transfer of mobile money between subscribers on the basis of Transfer Instructions including the recording of all Transactions, verifying and confirming all Transactions concluded and updating Subscriber Account records.
1.39. “Website” refers to the Wlee website address and any website address directly referred to on that site”
1.40. “we” or “us” or “our” means Wlee.

1.41. “you” or “your” means the Agent.

2. About Wlee
   2.1. Wlee is licensed mobile money operator in Liberia which allows Wlee Agents to provide services via the Wlee mobile app using their mobile phone, SMS, or via the Wlee website.
   2.2. These are the terms and conditions upon which you may use the Wlee Services (as defined herein) provided by Wlee (“Conditions of Use”) the acceptance of which constitutes a binding contract between yourself and Wlee. These Conditions of Use explain the purpose and features of the Wlee platform, other platform that the Wlee platform must interface with, the types of financial transactions the platform allow, the types of user groups that are targeted to use the platform, other types of non-targeted non-user groups that the Wlee platform must integrate with, and certain regulatory constraints that the platform must adhere to.
   2.3. When you register as a Wlee Agent you agree to abide by these Conditions of Use. You therefore need to read and fully understand these Conditions of Use and if you do not agree with them, you must not proceed to register for and/or use the Wlee mobile money services.
   2.4. Wlee is a mobile money platform. The app version of Wlee runs on a mobile phone, feature phone, computers, and tablet devices. The SMS version uses USSD and runs on feature phones. Wlee enables persons in Liberia to setup their account as subscribers or merchants, to add Credit to their wallet account, to manage their Wlee account, to onboard new customers (by themself or with the assistance of an agents) and to use the Credit in their wallet account to purchase products and services locally in Liberia. The allows agents to create accounts, verify customer’s identity, accept cash for Wlee top-up, provide cash with Wlee cash-out, transfer Credit locally to other subscribers and to receive Credit transfers locally. Additionally, Wlee allows fund transfers from international sources into a Wlee account. Wlee allows customers to pay merchants, utilities, taxes, and other forms of payments to private or public organizations.
3. Scope
   3.1. This agreement defines the terms and conditions under which the Agent shall distribute and promote Wlee services at the Business Location.
   3.2. The Agent’s shall undertake the following scope of services in accordance with the terms of this agreement to:
      3.2.1. Use his/her best efforts to register new subscribers for Wlee services
      3.2.2. Facilitate Top-up and Cash-out transactions for subscribers
      3.2.3. Perform other services and functions in connection with Wlee from time to time
4. Appointment and Terms
   4.1. Wlee mobile money appoints the Agent to distribute, promote, and service customers at the Business Location specified. The Agent is also appointed to register new subscribers.
   4.2. This agreement shall come into effect on the date of signature and shall continue for a period of six (6) months (“introductory term”) and shall be automatically renewed for successive terms of twelve (12) months thereafter, unless a Party has provided to the other a written notice of termination hand delivered with acknowledgement of receipt, at least 30 days before the end of the introductory term or subsequent renewal terms.
   4.3. The Agent acknowledges that Wlee mobile money service is provided on a non-exclusive basis.

4.4. This agreement supersedes all previous agreements between the party and terminates all previous agreements between the agent and Wlee in effect from the date of this agreement.
4.5. An amendment or altercation to this agreement shall be in writing and signed by authorized signatories of each party.
4.6. This agreement shall not be deemed to create any partnership, agency, joint venture, or employment relationship between the parties.
4.7. In the event that any provision in this agreement is held to be invalid, illegal, or unenforceable, this shall not effect the validity or enforceability of any other provision of this agreement, provided that, to maintain the intent of both parties, both parties negotiate in good faith to amend this agreement to replace the invalid, illegal, or unenforceable provision with an enforceable provision which reflects the intent of both parties.

5. Financial Terms
5.1. Funds will be credited to the agent's Wlee account after receipt of payment from the agent.
5.2. Wlee may modify the transaction charges and agent commission at any time subject to written notification to the agent.
5.3. Both parties agree that the only financial compensation Wlee will provide to the agent will be a percentage of commission fees from transactions.
5.4. The agent will have no claim on any other compensation, fee, or indemnity from Wlee, including advance payment, expenses, charges incurred, or loss of profit.
5.5. The agent hereby waves any remedies or claims of future indemnities.

6. Ownership and Risk
6.1. The agent will assume ownership and risk of commission earned once the agent cashes in their commission to their agent account.

7. Agent's General Responsibilities
7.1. The agent will open a Wlee agent account in their name with Wlee. Such account will be solely purposed to store and manage the agent's Wlee Credit and under no circumstances should the agent account be used to store and manage Wlee subscribers' funds or credit.
7.2. The agent will not delegate, outsource, or sub-contract any of their responsibilities described herein and must obtain prior approval from Wlee for each of their Business Locations that participates in providing Wlee services.
7.3. The agent will ensure his/her compliance with relevant regulation, laws, and directives of Wlee as derived from regulatory authorities in Liberia.
7.4. Wlee may from time to time issue notices advising the agent to refrain from dealing with individuals or entities and expect the agent to comply with such notices. Wlee reserves the right to terminate this agreement with immediate effect for failure to adhere to these notices.
7.5. Wlee requires that the agent not make any promises, representations, warranties, guarantees, or incur any liability with reference to Wlee except as expressly authorized in writing by Wlee.
7.6. The agent will from time to time consult with Wlee representatives to assess the state of the market of their respective Business Location and Sales Territory and shall permit such representatives to inspect any premises or documents used by the agent in providing or promoting Wlee's services.
7.7. When required by Wlee, the agent will ensure that their employees attend free and continuing agent training to ensure that their employees remain qualified to provide Wlee services.

7.8. The agent shall not do, reasonably prevent, or permit any activities or actions that may be detrimental to Wlee's products and services.

7.9. The agent will acquire and maintain an adequate insurance policy throughout the terms of this agreement to cover its responsibility for theft, loss, or damage to property or equipment owned or supplied by Wlee while such property or equipment is in the agent's procession. The agent shall provide evidence of such insurance coverage upon request from Wlee.

7.10. Within five (5) days of completion, the agent shall inform Wlee of a change in address, ownership, outlets, or any other information relevant to the agent's responsibilities as described in this agreement.

7.11. The agent shall provide Wlee with any information that could potentially impact its business continuity and its ability to meet the responsibilities as described in this agreement.

7.12. The agent shall allow access to any Wlee representative to inspect the agent's business location(s) and operations to ensure compliance with this agreement and compliance requirements from relevant Liberian authorities.

7.13. Wlee reserves the right to terminate this agreement immediately and without notice and suspend or withhold any commission due to the agent in the event the agent breaches any of the terms of the Conditions of Use described in this agreement.

8. Business Location Promotion and Management

8.1. The agent will ensure that the Business Location is identified and as a Wlee branded service location and that branding material provided by Wlee is displayed at the Business Location.

8.2. The agent shall comply with guidance and directives from Wlee regarding the standard and quality of all marketing and promotional activities.

8.3. Wlee hereby authorizes the Agent to use the Wlee and Wlee trademark, name, and logo strictly as it pertains to this agreement.

8.4. The agent will use such trademark and branding at it business locations in compliance with Wlee's marketing guidelines and not ensure that their display does not damage the image and reputation of Wlee's products and services.

9. Agent's Subscriber Registration Responsibilities

9.1. To facilitate the registration of new subscribers, the agent agrees to the following responsibilities:

9.1.1. To ensure that the subscriber has an active cell phone number and SIMM card with a Liberian mobile network operator.

9.1.2. To ensure that the registration application is completed accurately and signed by the subscriber.

9.1.3. To ensure that the information provided on the registration application compliments supporting documents and identification documents (if provided).

9.1.4. Is satisfied as to the identity of the subscriber and the accuracy of the information provided

9.1.5. To request activation of subscriber's account and submit the completed registration application and supporting documents to a Wlee representative withing 24 hours of application for validation and processing.

9.1.6. Use every effort to assist the subscriber with the registration process.

9.1.7. Decline to register a subscriber if not satisfied with proof of applicant's identity.

9.1.8. Be equipped with a compatible smartphone and at its own expense to register the subscriber.

10. Agent's Transaction Responsibilities

10.1. The following are the agent's responsibilities concerning cash-out and top-up transactions:

10.1.1. Can only cash-out and top-up transactions with an active and authorized Wlee agent account.

10.1.2. Can only perform top-up transactions with sufficient fund available in its Wlee agent account and with an active subscriber or merchant account.

10.1.3. Can only receive cash payment to perform top-up transactions if it corresponds to a transfer of funds from the agent's Wlee account to a relevant subscriber or merchant's account.

10.1.4. Can only perform cash-out transaction if it corresponds to prior receipt of funds from a relevant subscriber or merchant's account and with an understanding by the agent that this receipt of funds creates and irrevocable responsibility to immediately transfer credit to the subscriber or merchant's Wlee account in the amount received in cash from the subscriber or merchant.

10.1.5. Strictly apply Wlee's relevant fees for top-up and cash-out transactions and described by Wlee.

10.1.6. Ensure that transaction amount adhere to limits defined by regulation.

10.2. The agent agrees to be solely responsible to verifying the adequate settlement of top-up and cash-out transactions which they assist in transacting.

10.3. The agent acknowledges and agrees that any transfer of funds to or from the subscriber or merchant's account is final and irrevocable unless authorized by Wlee.

10.4. The agent will ensure that for each transaction (top-up, cash-out) receives a receipt that includes the transaction date, amount, and name and phone number of the subscriber or merchant.

11. Wlee Responsibilities

11.1. Wlee will ensure continuous availability and functioning of the Wlee service and platform including access, authentication, notification, and transaction processes initiated by the agent.

11.2. Wlee will provide the agent any information necessary and available in a timely manner concerning the functioning and development of the Wlee service to fulfil the responsibilities of this agreement.

11.3. Wlee will continually train and assist the agent with regard to issues related to Wlee services as may arise during the time that the agent's responsibilities are in effect as per this agreement.

11.4. Wlee will provide free promotion and branding materials for the agent's business location.

12. Confidentiality

12.1. Each party acknowledges that all materials and information that has or will come into procession or knowledge in connection to this agreement, or the performance thereof, consists of confidential and proprietary information, not to be disclosed to or used by a third party.

12.2. Both parties agree to hold such materials and information in strict confidence and to only use it in performance of this agreement and not to disclose it to a third party, unless required by law.

12.3. Neither party shall use the names or trademark of the other party in promotion, other forms of publicity, or in any manner not described in this agreement without the prior written consent of the other party.

12.4. Confidential and proprietary information excludes, at the time of disclosure, any information generally known by the public and any competitors of either party.

12.5. The parties' responsibility of confidentiality under this agreement shall survive the termination of this agreement.

13. Indemnities and Responsibilities

13.1. The agent will be solely responsible for any acts it performs in connection with the Wlee service and will indemnify and hold Wlee harmless against any and all claims arising from or in connection with the agent's breach of this agreement or applicable laws and compliance requirements.

13.2. Neither party shall be liable to the other party for any loss of business revenue, indirect loss, consequential loss, or damage arising.

13.3. Wlee's liability in contract, tort, or otherwise will not exceed in aggregate for any breach or breaches five-hundred-thousand ($500,000) Liberian Dollars.

13.4. Wlee will have no liability in any claim unless notice thereof is served at its registered office within twenty-four (24) months of the cause Action arising and proceedings in the same have been issued no later than three (3) months thereafter.

13.5. Neither party excludes or restricts liability for death or personal injury caused by their negligence.

14. Termination

14.1. This agreement may be terminated by either party at any time by providing a written notice within no less than thirty (30) days before the termination goes into effect, unless otherwise by mutual agreement on an immediate or later time.

14.2. In additional to any other rights and remedies required by law, this agreement may be terminated immediately by one party with immediately effect and without incurring any liability or compensation of any kind to the other party under the following circumstances:

14.2.1. Either party has committed a material breach of its responsibilities under this agreement and such breach is not remedied within ten (10) days of written notice from the other party.

14.2.2. Either party goes through a bankruptcy or other legal proceedings wherein it is declared insolvent or must undergo involuntary liquidation, or voluntary liquidation.

14.2.3. If Wlee deems that the agent's conduct and further affiliation with the agent will tarnish Wlee's public reputation or credibility as a company.

14.2.4. The agent is in breach of any terms of this agreement.

14.2.5. For agent's non-compliance when registering subscribers or transacting with subscriber.

14.2.6. A neglect by the agent in its responsibility to adhere to the "Data Privacy and Protection" clause described in this agreement.

14.3. Termination of this agreement shall be in writing and result in the closing of the agent's Wlee account and full redemption of fund in the agent's commission and regular accounts. If necessary, both parties shall discuss and decide how to implement the redemption of funds in the agent's accounts.

14.4. Termination shall be without prejudice to any rights or liabilities accrued at the date of termination and such termination not derive any responsibility on the part of Wlee to pay any compensation to the agent.

15. Prohibition on Agency Reassignment

15.1. This agreement is exclusive to both parties and shall not be reassigned in whole or in part by either party to another third party, except with written consent of the other party.

16. Applicable Laws and Dispute Settlement

16.1. This agreement is governed by the laws of the Republic of Liberia

16.2. Any dispute concerning the validity, interpretation or performance of this agreement shall, where and amicable settlement cannot be reached by representatives of both parties within thirty (30) days of one party notifying a dispute to the other, be finally resolved by a team of three (3) arbitrators, with each party selecting one (1) arbitrator, and a third being agreed by both parties to serve as the Primary Arbitrator. The arbitration decision shall be final and binding on both parties and the parties agree thereby to act accordingly. The arbitration shall take place at a location agreed on by both parties. The Primary Arbitrator will determine the location in the event a location cannot be agreed upon by both parties.

17. Amendment

17.1. Wlee reserves the right to amend or review the terms of this agreement from time to time particularly if Wlee introduces new Wlee service or if it is required by law.

17.2. Wlee will notify the agent in writing of any amendment to this agreement and the agent shall be deemed to have accepted to be bound by the amendment by continuing to operate as a Wlee agent.

18. Data Privacy and Protection

18.1. The parties confirm that they shall comply with data privacy regulations and laws applicable in Liberia.

18.2. The parties' responsibilities in regard to data privacy, data protection, data security, and data confidentiality, shall survive the termination of this agreement.

18.3. The parties commit to not use or disclose any personal data other than necessary to provide the Wlee service and to respond to a request from a judicial or regulatory body.

18.4. Personal data derived from Wlee services shall not be used for commercial purposes by both parties and for purposes not stipulated in this agreement.

18.5. The parties shall take necessary technical and organizational security measures to protect personal data against destruction, loss, alteration, unauthorized access and disclosure in accordance with applicable data protection laws.

18.6. Each party shall notify the other party as soon as possible after becoming aware of a data security breach resulting in unauthorized access, loss, or disclosure of such data.

18.7. At the end of the terms of agreement, each party shall return to the other party or destroy any personal data under this agreement, unless if required to retain this personal data by law or regulation.

18.8. The parties shall ensure that its employees and subcontractors, if any, are aware of and adhere to all the rule regarding data protection and confidentiality.

Execution

By executing this document, the agent agrees and affirms that they have carefully read and understood the terms and conditions in this agreement and agree to be bound by said terms and conditions.

Signatory on behalf of Wlee

Name:_____

Title:_____

Signature:_____

Date:_____

Signatory on behalf of Agent

Name:_____

Title:_____

Signature:_____

Date:_____

Appendix -

Service Fee and Commission

US Dollar (USD)				CASH-OUT		TOP-UP	
		Customer Fee %	AGENT COMMISSION % (% OF CUSTOMER FEE)	CUSTOMER FEE (LD)	AGENT COMMISSION (LD)	CUSTOMER FEE	AGENT COMMISSION
$1.00	$5	1%	80%	$0.05	$0.04	0	0
$5.01	$20	1%	80%	$0.20	$0.16	0	0
$20.01	$50	1%	80%	$0.50	$0.40	0	0
$50.01	$100	1%	80%	$1.00	$0.80	0	0
$100.01	$200	1%	80%	$2.00	$1.60	0	0
$200.01	$500	1%	80%	$5.00	$4.00	0	0
$500.01	$1,000	1%	80%	$10.00	$8.00	0	0
$1,000.01	$5,000	1%	80%	$50.00	$40.00	0	0
$5,000.01	$10,000	1%	80%	$100.00	$80.00	0	0

Liberian Dollar (LD)				CASH-OUT		TOP-UP	
		Customer Fee %	AGENT COMMISSION % (% OF CUSTOMER FEE)	CUSTOMER FEE (LD)	AGENT COMMISSION (LD)	CUSTOMER FEE	AGENT COMMISSION
$200	$1,000	1%	80%	$10.00	$8.00	0	0
$1,000.01	$5,000	1%	80%	$50.00	$40.00	0	0
$5,000.01	$10,000	1%	80%	$100.00	$80.00	0	0
$10,000.01	$15,000	1%	80%	$150.00	$120.00	0	0
$15,000.01	$20,000	1%	80%	$200.00	$160.00	0	0
$20,000.01	$25,000	1%	80%	$250.00	$200.00	0	0
$25,000.01	$30,000	1%	80%	$300.00	$240.00	0	0
$30,000.01	$50,000	1%	80%	$500.00	$400.00	0	0
$50,000.01	$175,000	1%	80%	$1,750.00	$1,400.00	0	0